

		hyperlink. (101 Cal.App.5th at p. 1290.) Relying on Massage Envy, the Herzog court explained: “here, the G6 App launch was a transaction separate from the transactions the user had already completed in order to acquire the Dexcom G6. Users would have no reason to anticipate encountering during the app launch new contractual terms governing their use of the Dexcom G6, a device they had already acquired with their medical provider's prescription.” (Id. at p. 1300.) Here, the enrollment in Bluelink services was a separate transaction from the purchase of the vehicle and Plaintiff’s acquisition of an express warranty. Consumers would have no reason to anticipate that the CSA to which they agree would govern their claims regarding the vehicle in general, including warranty claims, when they had already acquired the express warranty in a separate transaction. Further, nothing about the screen presented to consumers upon enrollment in Bluelink services would give consumers reasonable notice that the CSA Terms & Conditions would apply to the vehicle as a whole rather than only to the Bluelink services. In light of all the above, Defendant has failed to show that Plaintiff’s causes of action related to nonconformities and electrical defects in the subject vehicle fall within the scope of the arbitration agreement in the CSA or that Plaintiff assented to the agreement to arbitrate. Thus, the Motion to Compel Arbitration is DENIED. Defendant’s unopposed Request for Judicial Notice of the Complaint in this action is GRANTED. (Evid. Code, § 452(d).) Defendant to give notice.
111	Premier Liberty Development v. Nguyen, 2018-01008782	MOTION FOR SUMMARY JUDGMENT/ADJUDICATION – The Court will not issue a tentative on this motion. Additionally, the parties are advised that the Court has not yet issued an order on Premier’s motion for summary judgment, the hearing on which was held August 24.

112	Robicheaux v. Rowshan, 2022-01261647	DEMURRER TO ANSWER – OVERRULED Defendants and Cross-Complainants Kasra Rowshan, Newport Care Medical Group, Inc., Newport Care MSO, LLC, Linden Properties, LLC, Old Newport Group, LLC, and Top Surgical, LLC demur to all twenty four affirmative defense in Plaintiff and Cross-Defendant Grant Robicheaux’s First Amended Answer to the Second Amended Cross-Complaint. The court could deny the demurrer as untimely. (CCP, §§ 12a(a), 471.5, & 1010.6(a)(3)(B).) The Court will instead exercise its broad discretion to consider the demurrer, and the opposition thereto, which also appears to have been filed late. On the merits, with regard to the general demurrer to all affirmative defenses on grounds on they fail to plead ultimate facts, or do not specify to which cause of action they are directed, “[n]o error or defect in a pleading is to be regarded unless it affects substantial rights.” (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.) “The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (Id.) There can be no serious argument that the parties do not have notice of the claims and defenses being asserted. With regard to the argument that Plaintiff/Cross-defendant is judicially estopped from asserting the 24th affirmative defense of release, the Court has never accepted as true Robicheaux’s argument that the “Release does not apply to the disputed allegations.” Rather, the Court has only determined that such a conclusion would be a fact that must be determined by the jury. As such, the affirmative defense of release is not barred by the doctrine of judicial estoppel. Moving party to give notice.
-----	--------------------------------------	--